

§ 306.2. Fingerprinting; duties of the division of criminal justice services. 1. Upon receipt of fingerprints taken pursuant to section 306.1, the division of criminal justice services shall retain such fingerprints distinctly identifiable from adult criminal records except as provided in section 354.1, and shall not release such fingerprints to a federal depository or to any person except as authorized by this act. The division shall promulgate regulations to protect the confidentiality of such fingerprints and related information and to prevent access thereto, by, and the distribution thereof to, persons not authorized by law.

2. Upon receipt of such fingerprints, the division of criminal justice services shall classify them and search its records for information concerning an adjudication or pending matter involving the person arrested. The division shall promptly transmit to such forwarding officer or agency a report containing any information on file with respect to such person's previous adjudications and pending matters or a report stating that the person arrested has no previous record according to its files. Notwithstanding the foregoing, where the division has not received disposition information within two years of an arrest, the division shall, until such information or up-to-date status information is received, withhold the record of that arrest and any related activity in disseminating criminal history information.

3. Upon receipt of a report of the division of criminal justice services pursuant to this section, the recipient office or agency must promptly transmit two copies of such report to the family court in which the proceeding may be originated and two copies thereof to the presentment agency who shall furnish a copy thereof to counsel for the respondent.